

PARDON AND/OR REMISSION OF FINES APPLICATION
(Read and follow the attached instructions before submitting the application)

FOR: PARDON ☒ REMISSION OF FINES ☐ BOTH ☐

NAME OF APPLICANT: _____ AIS (if applicable): _____
 (at time of conviction)

CURRENT NAME (if different from above): _____

MAILING ADDRESS (street or PO Box, City, State, Zip): _____

EMAIL: alexandrina.montgomery-vandenberg@example.org _____

PHONE: +1 (205) 555-0199 ext. 204 _____ MOBILE PHONE: _____

RACE: _____ SEX: _____ DOB: 12/31/1960 _____ SSN: _____

CONVICTIONS: State ☐ Federal ☐ (Attach a complete list of convictions for which this application is requested to include counties and dates)

Is the pardon based on claim of innocence? _____

Have you applied for a pardon or remission of fines before? Pardon ☐ Fines ☐ Neither ☐

Date of last hearing: _____ If previously granted a pardon, what rights were not restored and what are you seeking now? _____

If requesting a remission of fine, attach a short and plain statement of the reason that the Board should grant relief.

I have read the INSTRUCTIONS FOR APPLYING FOR A PARDON AND/OR REMISSION OF FINES and agree to the terms and conditions stated in that document, including the requirements for submitting a WAIVER OF LIABILITY AND AUTHORITY FOR RELEASE OF INFORMATION form. I also acknowledge that the Alabama Board of Pardons and Paroles has complete discretion to grant or deny a pardon or remission of fines and that there is no right to either.

 Signature Date

Alexandrina-Katharine Montgomery-Vandenberg III

 Print Name

ALABAMA BUREAU OF PARDONS AND PAROLES USE ONLY

Application received on _____

Tracking Number _____

Waiver form received: Yes ☐ No ☐

 Print Name

 Signature

ALABAMA BUREAU OF PARDONS AND PAROLES

Alabama law allows persons with an Alabama conviction to apply for a pardon or a remission of fines, subject to the procedures specified by law. These procedures give the Alabama Board of Pardons and Paroles the discretionary authority to grant or deny a pardon, or to grant or deny a remission of fines. The Board may also consider pardons for convictions in the courts of the United States or of other states if the petitioner is, at the time of application and consideration, an Alabama resident.

All applications for a pardon are considered requests for a full pardon. **HOWEVER**, the Board retains the discretion to grant a pardon without restoration of all rights lost as a result of the conviction. The Board cannot grant relief from the Alabama Sex Offender Registration and Notification Act except under the conditions described in Alabama Code § 15-20A-43(b).

PLEASE READ THESE INSTRUCTIONS BEFORE SUBMITTING YOUR APPLICATION.

While a pardon and a remission of fines can be applied for at the same time and have many of the same instructions, please read both carefully to ensure you meet the criteria.

PARDONS:

1) Complete the “PARDON AND/OR REMISSION OF FINES APPLICATION” form and a “WAIVER OF LIABILITY AND AUTHORITY FOR RELEASE OF INFORMATION” form. **These forms must be submitted to the Alabama Bureau of Pardons and Paroles at the following mailing or email address:**

Alabama Bureau of Pardons and Paroles
301 South Ripley St
Montgomery, AL 36104
Email: pardons.application@paroles.alabama.gov

2) No pardon investigation will be completed except at the request of the person with the conviction.

3) To be considered for a pardon, an applicant must have either completed his or her sentence or have successfully completed at least three (3) years on parole for the sentence for which the applicant seeks a pardon.

4) Notwithstanding the foregoing, a pardon based on innocence may be granted upon the unanimous vote of the Board following receipt and filing of clear proof of his or her innocence of the crime for which he or she was convicted and the written approval of the judge or prosecuting attorney who tried the case.

5) Upon receiving the application and waiver, the Bureau’s Pardon Unit will investigate the applicant’s case. The investigation includes current information on the applicant’s home situation, job status, an updated criminal arrest record, written references, and other information as

warranted. Applicants must fully cooperate with the investigation of his or her criminal history, personal and social history, and the circumstances of the crime.

6) When the investigation is complete, the case will be docketed for consideration by the Board and required notification will be sent to the victim, certain government officials, and the applicant.

7) The time needed to complete the investigation depends on numerous factors, and no estimate will be provided.

8) If the Board grants a pardon, the Board will also decide whether to restore any or all civil and political rights lost as a result of the conviction. As required by law, Board Members shall provide the reasons supporting their decision to grant a pardon in its file. The Board's order granting a pardon will be public record. All other portions of the file shall remain privileged.

9) If the Board declines to grant a pardon and/or to restore any or all civil and political rights, the applicant may not re-apply until at least two (2) years have passed from the date of the Board's action, unless expressly ordered by the Board. **Any application submitted within two (2) years of the applicant's last application will be subject to rejection.**

REMISSION OF FINES

All applications for a remission of fines are considered a request for a full remission of the imposed fines. **HOWEVER**, the Board retains the discretion to remit all or part of the imposed fines.

1) Complete the attached "PARDON AND/OR REMISSION OF FINES APPLICATION" form and a "WAIVER OF LIABILITY AND AUTHORITY FOR RELEASE OF INFORMATION" form and submit these forms to the Alabama Bureau of Pardons and Paroles at the following mailing or email address:

Alabama Bureau of Pardons and Paroles
301 S. Ripley St.
Montgomery, AL 36104
Email: pardons.application@paroles.alabama.gov

2) No remission of fines investigation will be started without a signed application from the person fined.

3) Upon receiving the application and waiver, the Bureau's Pardon Unit will investigate the applicant's case. The investigation includes current information on the applicant's home situation, job status, an updated criminal arrest record, written references, and other information as warranted. Applicants must fully cooperate with the investigation of his or her criminal history, personal and social history, and the circumstances of the crime.

4) When the investigation is complete, the case will be docketed for consideration by the Board and required notification will be sent to the victim, certain government officials, and the applicant.

5) The time needed to complete the investigation depends on numerous factors, and no estimate will be provided.

6) The Board will only grant a remission of fines in cases to which the State of Alabama is a party.

7) If the Board grants a remission, the Board will provide the reasons supporting its decision to grant a remission in its order. The Board's order will be a public record. All other portions of the file are privileged.

8) If the Board declines to grant a remission of fines, the applicant may not submit a subsequent petition for remission for the same case.